Anurag Sharma vs The State (Govt. Of Nct Of Delhi) on 11 November, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ BAIL APPLN. 4282/2025 & CRL.M.A. 33152/2025
ANURAG SHARMA ..... Applicant
Through: Mr. Ankit Tandon, Adv.
(through VC)

versus

THE STATE (GOVT. OF NCT
OF DELHI) .....Respondent
Through: Mr Ritesh Kumar Bahri,
APP for the State
Inspector Birender Singh,
PS- Anand Vihar
CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN
ORDER

% 11.11.2025

1. The present application is filed seeking pre-arrest bail in FIR No. 445/2025 dated 06.10.2025, registered at Police Station Anand Vihar for the offences under Sections 318(4)/3(5)/61 of the Bharatiya Nyaya Sanhita, 2023.

2. The FIR was registered on a complaint given by the complainant/Sh. Shashank Aggarwal. It is alleged that the applicant along with co-accused, Deepak Malik conspired with each other and cheated the complainant of a sum of 1.90 crores, by misrepresenting that the property bearing no. 29, Shreshtha Vihar, Delhi (hereafter 'the subject property') was owned by the applicant.

3. It is alleged that the subject property was shown to have been sold by the applicant to the co-accused Deepak Malik by an Agreement to Sell and was subsequently agreed to be sold to the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/11/2025 at 21:53:28 complainant by the said co-accused, Deepak Malik. It is alleged that on the inducement by the applicant and co-accused Deepak Malik, the complainant entered into an agreement to sell with the accused persons and allegedly gave a sum of 1.90 crore to the co-accused Deepak Malik.

4. It is alleged that thereafter, the complainant learnt that the subject property had already been mortgaged by the applicant to M/s Chola Mandalam. It has consequently been alleged that the

accused persons committed fraud by accepting the money from the complainant when the subject property was already mortgaged.

5. The learned counsel for the applicant submits that the applicant is innocent and has been falsely implicated in the present case.

6. He submits that the applicant had agreed to sell the subject property to co-accused, Deepak Malik, and when he was not in a position to pay the amount, a subsequent transaction was entered into by Deepak Malik with the complainant to which the applicant stood as a witness.

7. He submits that even as per the case of the prosecution, no amount was transferred to the applicant either by the complainant or by the co-accused Deepak Malik. He submits that only evidence to implicate the applicant is the disclosure statement as made by the co-accused that some cash amount was received by the applicant, which is not admissible in law.

8. Issue notice.

9. The learned Additional Public Prosecutor for the State accepts notice.

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10. Let status report be filed before the next date of hearing.

11. The State is directed not to arrest the applicant till the next date of hearing on the applicant joining and cooperating with the investigation.

12. List on 16.12.2025.

AMIT MAHAJAN, J NOVEMBER 11, 2025 "SS"

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